

22PR00439 Estate of Kimberley Ann Phebus

County: santa-barbara

Division: Decedent's Estate

Department: 3 SM-Cook

Hearing date: 2023-09-27

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Kimberley Ann Phebus

Case Number

22PR00439

Case Type

Decedent's Estate

Hearing Date / Time

Wed, 09/27/2023 - 08:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances required. The following must be submitted:

Escrow Statements to Support the Final Report. A "final report of administration" must be filed at the same time a final account would be required. (Prob. Code, § 10954(c)[requires amount of compensation paid/payable to PR or attorney & basis for determination].) The Local Form Pleading used contains the required allegations of a Final Report, but that is dependent on the proper boxes checked in the pleading.

The Petition here indicates at paragraph 17 that the personal representative took no action under the IAEA without court approval. This is not a accurate allegation, because the personal representative obviously sold several parcels of real

property and there are no confirmations of those sales by this Court, because the personal representative did not request court confirmations of those sales. Even if the sales were properly listed at paragraph 17, a Final Report is not complete without escrow statements from the sale of real property. This is because allegations in the petition must include all actions taken under IAEA, including:

sales, purchases, or exchanges of assets (CRC, Rule 7.550(b)(2))

changes in the form of assets (CRC, Rule 7.550(b)(3))

assets on hand (CRC, Rule 7.550(b)(4))

whether the estate is solvent (CRC, Rule 7.550(b)(5))

detailed schedules of receipts and gains or losses on sale, IF an amount other than the amount of the Inventory and Appraisal is used as a basis for calculating fees or commissions (CRC, Rule 7.550(b)(6))

a list of costs of administration, IF reimbursement of administration costs is requested (CRC, Rule 7.550(b)(7))

a list of the amount of any fees or commissions paid or to be paid (CRC, Rule 7.550(b)(8)), and the calculation of such fees or commissions as described in CRC, Rule 7.705(b) (CRC, Rule 7.550(b)(9))

Thus, the requirements of Rule 7.550(b) mandate an escrow statement for any sale of real property be submitted in support of the final report.

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

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